

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
JOSEPH DELLUNIVERSATA

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK POLICE
DEPARTMENT, DET. ARTHUR TRUSCELLI, SHIELD #
000691, DET. JOHN BROOKS, 48TH PCT. SHIELD #06877,
DET. GERARD DELPRETE, SHIELD # 01973, DET.
MICHAEL FRIEDMAN, SHIELD # 06423,
INDIVIDUALLY AND AS POLICE OFFICERS,
AND POLICE OFFICER JOHN DOE 1, INDIVIDUALLY
AND AS A POLICE OFFICER SUED IN
HIS FICTICIOUS CAPACITY AS HIS IDENTITY IS
UNKNOWN,

Defendants.
-----X

**AMENDED VERIFIED
COMPLAINT**

Docket No.: **15 CV 4432
(PKC) (RER)**

Jury Trial Demanded

Plaintiff, Joseph Delluniversata, by his attorneys, Emdin & Russell, LLP complaining of
the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1) Plaintiff bring this action for compensatory damages, punitive damages and attorney's
fees pursuant to 42 U.S.C. §§1981, 1983 and 1988 for violations of his civil rights, as said rights
are secured by said statues and the Constitution of the State of New York and the United States
as well as State Law claims articulated herein.

NATURE OF CLAIMS

2) Plaintiff seeks redness pursuant to 42 U.S.C. §1983 and 1988, et. seg, for violation of his
rights secured by the First, Fourth, Sixth and Eight Amendments and Due Process clause of the
Fourteenth Amendment of the United States Constitution.

3) Plaintiff also seeks redness under Article 1 Section 11 of the New York State
Constitution for denial of Equal Protection and redness for tortuous conduct against Plaintiff by
Defendants through battery, false arrest, false imprisonment, illegal search and seizure, abuse of

power and authority, conspiracy and Prima Facie Tort.

JURISDICTION

4) This action is brought pursuant to 42 U.S.C. §§1981, 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

5) Jurisdiction is found upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

6) Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391 (b), in that this is the district in which the claim arose.

JURY TRIAL DEMANDED

7) Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P.38 (b). Plaintiff seeks both compensatory and punitive damages, affirmative and equitable relief an award of costs, interest, and attorney's fees and seek other further relief as this Court deems equitable and just.

PARTIES

8) Plaintiff, Joseph Delluniversata, Caucasian male currently residing at 27 Walnut Avenue, Staten Island, New York 10308 and at the time of this incident resided at the abovementioned location.

9) Defendant CITY OF NEW YORK was and is a Municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

10) Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

11) That at all times hereinafter mentioned, Police Officers/ Detectives Arthur Truscelli, John Brooks, Gerard Delprete, Michael Friedman, and John Doe, were duly sworn police officers of the Staten Island/New York City Police Department and were acting under the supervision of said department and according to their official duties.

12) That at all times hereinafter mentioned named Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

13) Each and all of the acts of the named Defendants alleged herein were done by the named Defendants while acting within the scope of their employment by Defendant CITY OF NEW YORK.

FACTS

14) On or about September 5, 2014 at approximately 6:30 p.m., Plaintiff Delluniversata was lawfully in the vicinity of Keegans Lane and O'Gorman Avenue in Staten Island, New York when he was detained and seized by Police Officers/ Detectives Arthur Truscelli, John Brooks, Gerard Delprete, Michael Friedman, and John Doe, plained clothes police officers.

15) Plaintiff was pulled out of his friend's car and illegally searched.

16) The Defendants did not present a warrant or give reason as to why they were detaining the Plaintiff.

17) Plaintiff inquired as to why he was being detained and Defendant(s) replied "Turn around, shut the fuck up, mind your business, put your hands up against the car."

18) Plaintiff was first patted down then searched.

19) Defendants seized and searched Plaintiff's wallet.

20) The Defendants took everything out of Plaintiff's wallet and took his cell phone.

21) Defendants tried to gain access into Plaintiff's cell phone but were unsuccessful.

22) Upon verifying Plaintiff's identification by way of items within his wallet, the Defendants searched Plaintiff for a second time.

23) Plaintiff was thereafter searched a third time by an older, short stocky officer with two rubber gloves on his hands.

24) Said officer told Plaintiff to "Shut up and put your hands back on the car" as Plaintiff was shoved against the car.

25) Plaintiff was subjected to a strip search in that his basketball shorts were pulled down as one of the Defendants searched his body with rubber gloves.

26) At this time a crowd formed as Plaintiff's genitals were fondled and Plaintiff was searched in between his butt cheeks and around his waist.

27) All the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate, screening, hiring, retaining, training and supervising of its' employees, deliberate indifference as to punishment for misconduct against Joseph Delluniversata.

28) As a result of the foregoing, Joseph Delluniversata sustained, inter alia, emotional distress, embarrassment, humiliation and deprivation of his Constitutional Rights.

FEDERAL CLAIMS

AS AND FOR A FIRST CAUSE OF ACTION (Deprivation of Rights Under 42 U.S.C. §§1981 and 1983)

29) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "28" with the same force and effect as if fully set forth herein.

30) All of the aforementioned acts of Defendants, their agents, servants and employees were

carried out under the color of state law.

31) All of the aforementioned acts deprived Plaintiff, Joseph Delluniversata of his rights, privileges and immunities guaranteed to as a citizen of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §§1981 and 1983.

32) The acts complained of were carried out by the aforementioned individual Defendants, Det. Arthur Truscelli, Det. John Brooks, Det. Gerard Delprete, Det. Michael Friedman, Police Officer John Doe in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto, and with the intent to discriminate on the basis of gender.

33) The Defendants herein battered the Plaintiff more specifically touched the Plaintiff's body without his consent.

34) Defendants battered Joseph Delluniversata by touching his person, buttocks, genitals, butt cheeks in between his butt cheeks as he stood on a public street.

35) The acts complained of were carried out by the aforementioned individual Defendants, Det. Arthur Truscelli, Det. John Brooks, Det. Gerard Delprete, Det. Michael Friedman, Police Officer John Doe, in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

36) Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

37) As a result of the foregoing, Plaintiff, Joseph Delluniversata is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individuals in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION

(False Detention/ False Arrest/ Unlawful Imprisonment under 42 U.S.C. § 1983)

38) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "37" with the same force and effect as if fully set forth herein.

39) Defendants did falsely detain the Plaintiff, Joseph Delluniversata, and falsely arrested the Plaintiff, Joseph Delluniversata without Probable Cause, causing him to be detained against his will for an extended period of time and subjected to physical restraint.

40) Defendants' false detention, and illegal search of Plaintiff, Joseph Delluniversata was without Probable Cause and said misconduct was malicious in nature.

41) As a result of the foregoing, Plaintiff, Joseph Delluniversata, is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION

(Malicious Abuse of Process Authority under 42 U.S.C. § 1983)

42) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "41" with the same force and effect as if fully set forth herein.

43) Defendants issued criminal process against Plaintiff, Joseph Delluniversata, by detaining, searching and strip searching the Plaintiff, Joseph Delluniversata, as they acted under the color of law.

44) Defendants actions was an abuse of authority given they had no Probable Cause to detain, seize and/or search the Plaintiff, Joseph Delluniversata.

45) As a result of the foregoing, Plaintiff, Joseph Delluniversata, is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against

the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Violation of the Equal Protection Clause under 42 U.S.C. § 1983)

46) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "45" with the same force and effect as if fully set forth herein.

47) Plaintiff, Joseph Delluniversata, was falsely detained and physically restrained. During this physical restraint, Joseph Delluniversata, forcibly placed against a car and seized, searched and stripped searched resulting in a battery and false detention, arrest.

48) The physical restraint and public search as to the Plaintiff, Joseph Delluniversata, was based on his gender and the failure to intervene to prevent such treatment committed by the named Defendants were also based on gender of the Plaintiff, Joseph Delluniversata.

49) The battery and false detention/arrest committed on Joseph Delluniversata were based on his gender, Joseph Delluniversata would not have been physically restrained or stripped searched.

50) Moreover, the failure to intervene by other Defendant and/or unknown officers present, as to said battery and search was founded on Joseph Delluniversata gender.

51) The Defendants' false detention and arrest of Joseph Delluniversata were based on his gender as well as the named Defendants' failure to intervene as to this misconduct.

52) As a result of the foregoing, Plaintiff, Joseph Delluniversata, was deprived of his rights under the Equal Protection Clause of the United States Constitution.

53) As a result of the foregoing, Plaintiff, Joseph Delluniversata, is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual named Defendants in an amount to be fixed by a jury, plus reasonable attorney's

fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Deprivation of Substantive Due Process under 42 U.S.C. § 1983)

54) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs “1” through “53” with the same force and effect as if fully set forth herein.

55) The Defendants conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.

56) As a result of the foregoing, Plaintiff, Joseph Delluniversata, was deprived of his liberty and right to substantive due process, causing emotional injuries.

57) As a result of the foregoing, Plaintiff, Joseph Delluniversata, is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

58) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs “1” through “57” with the same force and effect as if fully set forth herein.

59) Defendants have an affirmative duty to intervene on behalf of Plaintiff, Joseph Delluniversata whose constitutional rights were being violated in his presence by other officers.

60) The Defendants’ failed to intervene to prevent the unlawful conduct described herein.

61) As a result of the foregoing, Plaintiff, Joseph Delluniversata, liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subjected to other physical restraints.

62) As a result of the foregoing, Plaintiff, Joseph Delluniversata, is entitled to compensatory

damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual named Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

63) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "62" with the same force and effect as if fully set forth herein.

64) The supervisory defendants personally caused Plaintiff, Joseph Delluniversata's constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise, train and/or discipline their subordinates employees.

65) As a result of the foregoing, Plaintiff, Joseph Delluniversata, is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual named Defendants, in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A EIGHTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

66) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "65" with the same force and effect as if fully set forth herein.

67) Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

68) The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to, arresting citizens without probable cause, and engaging in falsification of facts/ evidence for the reason to detain the Plaintiff and in efforts and support of violating Plaintiff's rights. In addition, the CITY OF NEW YORK engaged in a policies such as Stop and Frisk, Broken Windows and other customs or

practices which are discriminatory in its implementation and said misconduct is treated with deliberate indifference, moreover THE CITY OF NEW YORK provided inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of Plaintiff, Joseph Delluniversata's rights as described herein. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual named Defendants, Det. Arthur Truscelli, Det. John Brooks, Det. Gerard Delprete, Det. Michael Friedman, Police Officer John Doe, Defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

69) The CITY OF NEW YORK deliberate indifference illustrated by the lack of disciplining officers for their misconduct behavior further embeds a culture, policies, practices, repeated misconduct which now becomes the norm as to police behavior.

70) The foregoing customs, policies, usages, practices, procedures, deliberate indifferences to discipline and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff, Joseph Delluniversata.

71) The foregoing customs, policies, usages, practices, procedures, deliberate indifferences to discipline and rules of the CITY OF NEW YORK and the New York City Police Department were direct and proximate cause of the constitutional violations suffered by Plaintiff, Joseph Delluniversata as alleged herein.

72) The foregoing customs, policies, usages, practices, procedures, deliberate indifferences to discipline and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by Plaintiff, Joseph Delluniversata as alleged herein.

73) As a result of the foregoing customs, policies, usages, practices, procedures, deliberate indifference as to discipline and rules of the CITY OF NEW YORK and the New York City Police Department, Plaintiff, Joseph Delluniversata was unlawfully detained, searched and stripped searched.

74) Defendants, Det. Arthur Truscelli, Det. John Brooks, Det. Gerard Delprete, Det. Michael Friedman, and Police Officer John Doe, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff, Joseph Delluniversata's constitutional rights.

75) All of the foregoing acts by Defendants, Det. Arthur Truscelli, Det. John Brooks, Det. Gerard Delprete, Det. Michael Friedman, and Police Officer John Doe, deprived Plaintiff, Joseph Delluniversata of federally protected rights, including, but not limited to the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false detention, false arrest and unlawful imprisonment;
- C. To be free from the failure to intervene;
- D. To be free from malicious prosecution;
- E. To be free from malicious abuse of process; and excessive force, battery and assault;
- F. To receive equal protection under law.

76) As a result of the foregoing, Plaintiff, Joseph Delluniversata, is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual named Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, Plaintiff, Joseph Delluniversata demands judgment and pray for the following relief jointly and severally, against defendants as follows:

1. Full and fair compensatory damages in an amount to be determined by a jury
2. Punitive damages in an amount to be determine by a jury;
3. Reasonable attorney's fees and the costs and disbursements of this action; and
4. Such other and further relief as appears just and proper.

Plaintiff further asserts the following state law violations as a result of the defendants' misconduct:

AS AND FOR A NINTH CAUSE OF ACTION
PURSUANT TO NEW YORK CONSTITUTION
ART.I, 11

77) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "76" with the same force and effect as if fully set forth herein.

78) By the aforesaid acts, Defendants have violated Plaintiff's right to the equal protection laws under Article I, 11 of the New York State Constitution, thereby giving rise to cause of action pursuant to that Article.

79) The conduct and actions of the named Defendant Police Officers, Det. Arthur Truscelli, Det. John Brooks, Det. Gerard Delprete, Det. Michael Friedman, and Police Officer John Doe, and Defendant City of New York, acting under color of law, in falsely detaining, arresting, imprisoning, battering, searching and conspiring against Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under law and Constitution of the State of New York. The above described actions and omissions engaged in under color of state law by the named Police Officer Defendants, Det. Arthur Truscelli, Det. John Brooks, Det. Gerard Delprete, Det. Michael Friedman, and Police Officer John Doe, including Defendant City of New York, sued as a person within the meaning of Article I, 11 deprived the Plaintiff of rights, including but not limited to, their rights under Article I, 8, 9 guaranteeing freedom of expression and association, Article I, 12 guaranteeing protection against unlawful seizure of his person, Article I, 11 guaranteeing due process and equal protection under the law, and Article I, 15 guaranteeing protection from cruel and unusual punishment.

80) By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A TENTH CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING AND SUPERVISION**

81) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs “1” through “80” with the same force and effect as if fully set forth herein.

82) The above described injuries suffered by the Plaintiff is the proximate result of the negligence of the Defendant Staten Island Police Department/ New York City Police Department, in that the Defendant City of New York and the Staten Island Police Department/ New York Police Department failed to exercise reasonable care in the hiring, employment, supervision and training of its employees.

83) The Defendant City of New York and the Staten Island Police Department had, or should have had, knowledge of the vicious and violent tendencies of its employees, including all of the named Police Officer Defendants, Det. Arthur Truscelli, Det. John Brooks, Det. Gerard Delprete, Det. Michael Friedman and Police Officer John Doe.

84) Defendant City of New York, and the Staten Island Police Department knew or should have known of the unlawful actions of the named Police Officer Defendants, through actual and constructive notice, of their unlawful activities, including but not limited to those allegations as set forth in the preceeding paragraphs above. Defendants City of New York, and Staten Island Police Department failed to exercise reasonable care by retaining and not terminating the employment of the named Police Officer Defendants or taking other appropriate action. The occurrence complained of herein were due to the negligence and recklessness of the Defendant City of New York and the Staten Island Police Department/ New York Police Department.

85) By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A ELEVENTH CAUSE OF ACTION
FALSE ARREST/ FALSE DETENTION/ FALSE IMPRISONMENT**

86) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "85" with the same force and effect as if fully set forth herein.

87) By the aforesaid acts, Defendants unlawfully and unjustifiably arrested and detained Plaintiff without any lawful cause whatsoever. Defendants acted willfully, unlawfully, maliciously, recklessly and negligently in detaining and arresting Plaintiff despite Plaintiff's innocence, and utilized its power and authority to illegal seize, search the Plaintiff as well as to cover-up their own wrongful conduct. The Defendants illegally seized Plaintiff's person detaining, arresting and imprisoning the Plaintiff by not allowing him to exercise his right to liberty when no probable cause existed to detain the Plaintiff.

88) The Defendants tortuous conduct as set forth above herein directly resulted in the Plaintiff being wrongfully detained and arrested.

89) By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A TWELFTH CAUSE OF ACTION
PRIMA FACIE TORT**

90) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "89" with the same force and effect as if fully set forth herein.

91) In falsely arresting, detaining, imprisoning, fabricating and conspiring against Plaintiff, Defendants acted with malicious intent, recklessness and negligence to injure and harm the Plaintiff.

92) By reason of the tortuous conduct of Defendants, Plaintiff has been damaged as set forth above.

93) For all claims under New York State Law, Defendants are jointly and severally liable to

the Plaintiff inasmuch as this action arises out of the exceptions set forth in 1602 subdivisions 5, 7 and 11 of the Civil Practice Law and Rules.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
ASSAULT AND BATTERY

94) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "93" with the same force and effect as if fully set forth herein.

95) By the aforesaid acts, Defendants have caused physical harm and injury upon the person(s) of the individual Plaintiff named in the complaint herein. Defendants acted willfully, unlawfully, maliciously, recklessly, unjustifiably, negligently, in the abuse of power and authority, excessive use therein which resulted in the Plaintiff being stripped searched in public as well as battered.

96) By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
CONSPIRACY AND FABRICATION OF EVIDENCE

97) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "96" with the same force and effect as if fully set forth herein.

98) The named Police Officer Defendants did knowingly and intentionally agree and/or otherwise conspire to provide false evidence against the Plaintiff to cover-up their wrongdoing of falsely detaining, battering and strip searching the Plaintiff by the aforementioned omissions.

99) The Defendants tortuous conduct caused the Plaintiff to suffer severe emotional distress and thus the Plaintiff has been damaged as set forth above.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
MONELL CLAIM

100) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs “1” through “99” with the same force and effect as if fully set forth herein.

101) At all time material to this complaint, the Defendant City of New York, acting through the Staten Island Police Department, had in effect de facto policies, practices and customs that were a direct and proximate cause of the unconstitutional conduct of Defendants. These de facto policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, and/or otherwise control Police Officers who are repeatedly accused of such acts; and, the Police Code Silence wherein Police Officers regularly cover-up police misconduct such as racial profiling, the unjustified use of force and tactics, like telling false and incomplete stories, or failing to report the misconduct and unjustified force and tactics by other Police Officers during their course of employment.

102) While the tolerance for brutality and profiling arises from the same set of police attitudes as the tolerance for corruption, there is an important difference. Unlike serious corruption, which most cops outwardly tolerate but inwardly deplore and resent, officers seem fairly tolerant—both outwardly and inwardly—of occasional police brutality and the use of racial profiling...[M]any do not seem to believe that anything is really wrong with a few blows and bruises now and then. Even officers who would never take a free cup of coffee, seem to tolerate what they believe is a little “street justice.” An excessive use of fists to face, a nightstick to the ribs, and knees to groin are seen as the realities of policing. Upon information and belief, this mentality is extended to profiling.

103) The Defendant City of New York and the Staten Island Police Department had or should have had, knowledge of the vicious and violent tendencies of its employees, including all of the named Police Officer Defendants.

104) The Defendant City of New York knew or should have known of the unlawful actions of all of the named Police Officer Defendants through actual and constructive notice of their unlawful activities, including but not limited to, those allegations as set forth in paragraphs “1” through “103” above.

105) Defendant the City of New York failed to exercise reasonable care by retaining and not terminating the employment of all said named Police Officer Defendants or taking other appropriate corrective action. The occurrences complained of herein were due to the negligence and recklessness of the Defendant the City of New York, Staten Island Police Department.

106) Upon information and belief, the Defendant the City of New York and Staten Island Police Department have failed to effectively screen, hire train, supervise, and discipline their Police Officers, including all of the named Defendant Police Officers, for their propensity for misconduct, including lack of truthfulness, and for their failure to protect citizens from unconstitutional conduct of other Police Officers, thereby permitting and allowing the named Police Officer Defendants herein to be in a position to unjustifiably manufacture evidence, arrest, restrain and battery of the Plaintiff and to otherwise cause him injury and violate his state and federal constitutional rights.

107) Upon information and belief, all of the named Police Officer Defendants have been the subject of prior civilian and departmental complaints of misconduct that gave notice to, or should have given notice to, the City of Staten Island that all of the named Police Officers were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by the Plaintiff herein.

108) Upon information and belief, the Defendant City of New York and the Staten Island Police Department, maintained an inadequate structure for risk containment and stress management relevant to its Police Officers, and failed to create proper means of containing such risk and managing such stress. Inter alia, the structure was deficient, at the time selection of Police Officers and thereafter during their employment, in its ability to evaluate and exchange information within the command structure about the performance of individual Police Officers;

in its training of supervisory personnel to effectively and adequately evaluate performance of an officer; and in its ability to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The effect of this was to permit Police Officers to function at levels of significant and substantial risk to the public.

109) As a result of the foregoing conscious policies, practices, customs and /or usages, Defendant City of New York and the Staten Island Police Department, have permitted and allowed the employment and retention of individuals as Police Officers whose individual circumstances place the public or segments thereof at substantial risk of being the victims of violent and fraudulent behavior. Such policies, practices, customs and/or usages are a direct and proximate cause of the injuries to the Plaintiff herein.

110) As a result and proximate result of the City of New York's wrongful policies, practices customs and/or usages complained of herein, Plaintiff has suffered emotional injury, mental anguish, humiliation and embarrassment.

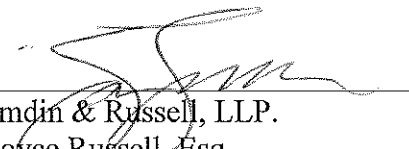
111) Defendant City of New York is additionally liable under the legal principle of Respondeat Superior, in that all of the named Police Officer Defendants were on duty and were acting in the course and scope of their duties and employment as a City of New York Police Officer specifically Staten Island during the detention, false arrest and battery upon Plaintiff Joseph Delluniversata.

WHEREFORE, Plaintiff, Joseph Delluniversata respectfully requests judgment upon all causes of action against Defendants as follows:

1. With respect to Defendant The City of New York; and Staten Island Police Department
 - (a) Declaratory judgment declaring that Defendant City of New York and Staten Island Police Department has violated the aforesaid statutes and constitutions.

- (b) Restitution to Plaintiff of his rights, privileges, benefits and income which would have been received by him but for the Defendants unlawful, wrongful, tortuous, and unconstitutional conduct;
 - (c) Compensatory damages in an amount to be determined by the court and jury;
 - (d) Punitive damages in the amount to be determined by the court and jury
 - (e) All legal and statutory interest on sums awarded
 - (f) Such other and further relief as this honorable court may deem just, proper and equitable
2. With respect to each Police Officer Defendants, Det. Arthur Truscelli, Det. John Brooks, Det. Gerard Delprete, Det. Michael Friedman, and Police Officer John Doe ;
- (a) Declaratory judgment declaring that the Defendants have violated the aforesaid statutes and constitutions;
 - (b) Restitution to Plaintiff of his rights, privileges, benefits and income which would have been received by them but for Defendants' unlawful, wrongful, tortuous, and unconstitutional conduct.
 - (c) Compensatory damages in an amount to be determined by the court and jury;
 - (d) Punitive damages in an amount to be determined by the court and jury;
 - (e) All legal and statutory interest on sums awarded.

Dated: New York, New York
November 19, 2015



Emdin & Russell, LLP.
Royce Russell, Esq.
Attorneys for Plaintiff
499 Seventh Avenue, 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

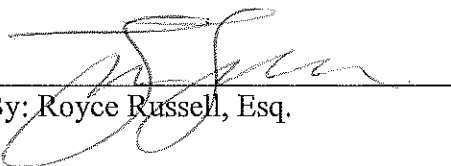
That I am an attorney associated with the law firm of Emdin & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside in the County where the undersigned maintains an office.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
November 19, 2015


By: Royce Russell, Esq.

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
JOSEPH DELLUNIVERSATA

Plaintiff,

-against-

AFFIDAVIT OF SERVICE

Docket No.: 15 CV 4432
(PKC) (RER)

THE CITY OF NEW YORK, THE NEW YORK POLICE
DEPARTMENT, DET. ARTHUR TRUSCELLI, SHIELD #
000691, DET. JOHN BROOKS, 48TH PCT. SHIELD #06877,
DET. GERARD DELPRETE, SHIELD # 01973, DET.
MICHAEL FRIEDMAN, SHIELD # 06423,
INDIVIDUALLY AND AS POLICE OFFICERS,
AND POLICE OFFICER JOHN DOE 1, INDIVIDUALLY
AND AS A POLICE OFFICER SUED IN
HIS FICTICIOUS CAPACITY AS HIS IDENTITY IS
UNKNOWN,

Defendants.
-----X

I, Juan Olivo, being sworn, say: I am not a party to the action, am over 18 years of age and reside in the State of New York and in the County of the New York.

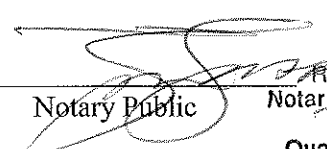
On November 19, 2015, I served the within **Amended Verified Complaint** by depositing a true copy thereof enclosed in a post-paid wrapper, in an official depository under the exclusive care and custody of the U.S. Postal Service within New York State, addressed to:

Corporation Counsel
Attn: Daniel M. Braun
100 Church Street
New York, New York 10007



Juan Olivo

Sworn before me on this
19 day of Nov, 2015



Notary Public

ROYCE RUSSELL
Notary Public, State of New York
No. 02RU0974007
Qualified in New York County
Commission Expires 5/20/20

11/18/15